

SENATE No. 1575

The Commonwealth of Massachusetts

PRESENTED BY:

Paul W. Mark, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing municipalities to opt out of fluoridation treatments.

PETITION OF:

NAME:

Tim Jernigan-Smith

DISTRICT/ADDRESS:

SENATE No. 1575

By Mr. Mark (by request), a petition (accompanied by bill, Senate, No. 1575) of Tim Jernigan-Smith, for legislation to provide municipalities to opt out of fluoridation treatments. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing municipalities to opt out of fluoridation treatments.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 8C of Chapter 111 of the General Laws, as appearing in the 2022
2 Official Edition, are hereby amended by inserting the following new paragraph after line 46:

3 Any town, city or district with artificial fluoridation programs in effect can end those
4 programs with a local ordinance banning fluoridation via the local legislative body, i.e. City
5 Council, Town Meeting or Water Commissioners. That process is initiated by the presentation of
6 a petition of at least ten registered voters to the legislative body. Moreover, if the water
7 superintendent or water commissioners with responsibility for ensuring water safety determines
8 that in their opinion, the water fluoridation program is posing a risk to consumers, workers,
9 infrastructure or environment, they can suspend fluoridation programs at will.